

ENTITLED: "A RESOLUTION DIRECTING ALL REVENUE FROM CONTRACT NO. 5902 TO BE EQUALLY DISBURSED BETWEEN THE CITY OF CHEYENNE AND THE BOARD OF PUBLIC UTILITIES AND EARMARKED TO DEVELOP, PLAN, BUILD AND MAINTAIN RECREATION FACILITIES AT THE BELVOIR RANCH AND WATER DEVELOPMENT EXPANSION PROJECTS FOR THE BOARD OF PUBLIC UTILITIES."

WHEREAS, the Belvoir Ranch was originally equally purchased by the City of Cheyenne and The Board of Public Utilities for many purposes, including recreation and water development expansion; and

WHEREAS, the Governing Body of the City of Cheyenne and The Board of Public Utilities desires to establish a funding mechanisms to develop, plan, build, and maintain recreation infrastructure and facilities at the Belvoir Ranch and water development expansion projects for the Board of Public Utilities; and

WHEREAS, the Belvoir Ranch currently has a separate line item in the City of Cheyenne Budget which is managed by the Public Works Department; and

WHEREAS, the Board of Public Utilities currently operates, maintains and manages irrigation water wells and water rights on the Belvoir Ranch annually within their budget which is managed by the Water Treatment Division; and

WHEREAS, the Governing Body of City of Cheyenne and The Board of Public Utilities wishes to direct the revenue from City Contract No. 5902 with NextEra Energy to be equally disbursed and earmarked for the purposes of planning, constructing and maintaining recreation facilities at the Belvoir Ranch and water development expansion projects for the Board of Public Utilities; and

WHEREAS, the Governing Body requests a financial plan for the facilities, including the amount of revenue received from City Contract No. 5902 and the anticipated use for the earmarked funds, before any City expenditures are incurred; and

WHEREAS, the Public Works Department is directed to coordinate with the Planning and Development Department and Community Recreation and Events Department to develop and execute the plan for the earmarked funds; and

WHEREAS, the official Board of the City of Cheyenne Board of Utilities will review plans for the Board's water development expansion projects, including the amount of revenue received from City Contract No. 5902 and the anticipated use for the earmarked funds, before any Board expenditures are incurred; and

WHEREAS, the Board of Public Utilities is directed to follow the recommendations for water development expansion projects as discussed in the most recent copy of the Board's Master Plan in addition to the Board's three-year budget projection plan; and

WHEREAS, the direction provided by this Resolution will terminate after Fiscal Year 2030-2031. (Lease term Article 4.1 of City Contract 5902 -- 30 years from the date of commercial operation of the last installed wind turbine).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that all revenue from City of Cheyenne City Contract No. 5902 will be equally disbursed and earmarked between the City of Cheyenne and the Board of Public Utilities to develop, plan, build and maintain recreation facilities at the Belvoir Ranch and water development expansion projects for the Board of Public Utilities.

PRESENTED, READ AND ADOPTED this _____ day of _____ 2019.

Marian J. Orr, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk